Plaintiff seeks one-third of the total settlement amount as fees ($583.333/33), relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) At the Court's direction, counsel have prepared a lodestar fee estimate, estimating $156,780, based on 195.9 hours, at a blended rate of $800 per hour. This results in an imputed multiplier of 3.72. This imputed multiplier is relatively high for this type of case, in this Court's experience. In addition, however, the average individual payment ($2,331), is relatively high. The Court finds that a reasonable fee for this case would be 30% (as opposed to the requested 33 1/3%) which would constitute $525,000. This still results in an imputed multiplier of 3.35.

Litigation costs of $21,165.90 are reasonable and are approved.

Settlement administration costs of $10,800 are reasonable and are approved.

The requested representative payment of $10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined "risk" by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, with the small reduction in the attorney's fees. The motion is granted. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

The compliance hearing will be held in Department 16, the Honorable Benjamin Reyes, which is assigned to this case for all purposes as of March 1, 2026.

6. 9:00 AM CASE NUMBER: C23-02227
CASE NAME: LATINIA JOHNSON VS. WALMART INC.
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: JOHNSON, LATINIA
<u>*TENTATIVE RULING:*</u>

The **motion is granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of**

service is filed with the court.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

7. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. DOES 1 THROUGH 50, INCLUSIVE
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
<u>*TENTATIVE RULING:*</u>

The declaration of Daniel Padova establishes that “No Kid Hungry” is a campaign of Share Our Strength, Inc., which “is a 501(c)(3) nonprofit organization focusing on child hunger programs.” It does not establish that it engages in “child advocacy.” Some description of what the organization does that constitutes “advocacy” is needed to meet the statutory requirement. If there is an advocacy component, it needs to be so stated. Not every charitable organization, no matter how laudable its work, meets the requirement. The **matter is continued to February 5, 2026, with a supplemental declaration to be filed by February 2, 2026**.

8. 9:00 AM CASE NUMBER: C23-03009
CASE NAME: RONALD ABBS, JR. VS. DAVID BOLES
***HEARING ON MOTION IN RE: TO APPOINT SPECIAL MASTER**
FILED BY: S&J PROPERTIES, CONSTRUCTION, INC.
<u>*TENTATIVE RULING:*</u>

Appearances required to update the Court on the status of the motion, given that a stipulated order appointing a special master was entered on November 21, 2025.

9. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS
***HEARING ON MOTION IN RE: SANCTIONS 128.7, BY PLTF**
FILED BY:
<u>*TENTATIVE RULING:*</u>

<u>Introduction</u>

Before the Court is Plaintiff’s Motion for Sanctions under CCP §§ 128.5 and 128.7.

For the reasons explained below, **<u>Plaintiff’s Motion for Sanctions is denied.</u>**

<u>Procedural Background</u>

Plaintiff filed his initial lawsuit against IHSS In-Home Support Services and individual County employees Julie Peck, Yen Ko-Young, Tracy Murray, Sena Pierce-Morris and Ann Barrett (“County Defendants”) on January 24, 2024. A first amended complaint (“FAC”) followed on October 16, 2024. On or around December 29, 2024, a process server for the plaintiff dropped off the FAC for all the individual County employee defendants with Stacey Boyd, a Deputy Clerk at the Contra Costa County Clerk of the Board’s office. Plaintiff then took their default on January 24, 2025.

On January 29, 2025, the County Defendants moved to set aside the default on the basis that they were not personally served by Plaintiff. In support of that assertion, a declaration from Stacey Boyd was submitted indicating she was not authorized to accept service on behalf of individuals, but she